

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1278

AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 25-23-1-3, AS AMENDED BY P.L.148-2023, SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. At any time there is a vacancy **or expiration of a term**, the Indiana State Nurses Association shall recommend to the governor a list of qualified nurses for appointment to the board in the number of not less than twice the number of:

- (1) nurse vacancies to be filled; **or**
- (2) **nurse appointments to be made.**

SECTION 2. IC 25-23-1-20.1, AS AMENDED BY P.L.148-2023, SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20.1. (a) As used in this section, "eligible ~~associate or bachelor's degree registered~~ nursing program" means **an a practical nursing program or an** associate or bachelor's degree registered nursing program that:

- (1) is accredited by the board; and
- (2) has an annual rate of successful completion of the National Council Licensure Examination (NCLEX) score of at least eighty percent (80%).

(b) As used in this section, "nursing program" means any of the following:

- (1) A licensed practical nursing program.
- (2) An associate degree nursing program.

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(3) A diploma nursing program.

(4) A baccalaureate degree nursing program.

(c) ~~An eligible associate degree or bachelor's degree registered nursing program that has been operating for at least five (5) years may increase enrollment in the program at any rate the program considers appropriate.~~ **An institution that has been operating an eligible nursing program for at least five (5) years may increase the enrollment in any eligible nursing program at any rate the institution considers appropriate.**

(d) A nursing program that:

(1) is operated by a postsecondary educational institution, as defined in IC 21-7-13-6(a)(1);

(2) was accredited by the board on a date after June 30, 2020; and

(3) has been operating for at least one (1) year;

may increase its enrollment rate by not more than one hundred percent (100%).



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

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